

The first hearing date offered to parties will be scheduled to take place within 180 calendar days from the date the application is ready to proceed to hearing.	181 days	38%	175 days	34%	161 days	59%
--	----------	-----	----------	-----	----------	-----

* HRTO's increase in applications has impacted the numbers of days.

Table 30: Comparison of HRTO service standards for decisions from the years 2015 to 2018

	2017-18		2016-17		2015-16	
Decisions	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met
Decisions for hearings which take 3 days or less will be issued within 90 calendar days.	63 days	81%	81 days	68%	86 days	76%
Decisions for hearings which take longer than 3 days, will be issued within 180 calendar days. *	235 days	33%	312 days	17%	300 days	36%

* The Tribunal issued a total of 24 Decisions in cases where the decision release standard was 180 days. Of those 24 Decisions, 8 met the standard (33%) while 16 did not. There are various reasons why those 16 decisions exceeded the standard, including the number of parties involved in the hearing, the complexity of the issues, the length of the hearings and amount of evidence heard.

tribunalsontario.ca/hrto

[Return to Table of Contents](#)

Landlord and Tenant Board



What We Do

The Landlord and Tenant Board (LTB) was established on January 31, 2007 to:

- resolve disputes between landlords and tenants
- resolves eviction applications from non-profit housing co-operatives
- provide information to landlords and tenants about their rights and responsibilities under the [Residential Tenancies Act](#) (RTA)
- provides information about LTB's practices and procedures

Legislative Authority

The LTB is established under the [Residential Tenancies Act](#) (RTA).

Operational Highlights

Case Management Hearings

Since March 2017, the LTB has been holding case management hearings for applications filed by landlords to increase rent above the guideline based on capital expenditures (for renovations, repairs, replacements or additions). During a case management hearing, a dispute resolution officer helps the two sides try to reach an agreement on a fair rent increase. If an agreement is reached, the dispute resolution officer records the terms of the agreement in a consent order. If the application is not settled, it is scheduled for a full hearing before an adjudicator on another day.

Case management hearings have proven to be an effective way of resolving these applications, with an 81% settlement rate at the end of the year. The LTB is exploring the use of case management hearings in the future for other application types.

Accepting Application-Specific Inquiries by Email

In June 2016, all LTB offices started accepting email inquiries from parties about their applications. For example, parties can email required documents for their application file or respond to LTB requests for dates they are not available, so the LTB can schedule a hearing. Each LTB office has its own email address. LTB staff received

45,581 emails through those accounts from April 1, 2017 to March 31, 2018.

For many people, email is more convenient than going to an office or waiting to speak to someone on the phone. It also gives people a way to contact the LTB outside of business hours.

The LTB responds to only application-specific inquiries by email. People with general questions about the LTB application and hearing process or the rights and responsibilities of landlords and tenants, should visit the LTB website, call the LTB, or visit Steps to Justice, an online resource with legal information at stepstojustice.ca.

LTB e-File

Launched in July 2015, LTB e-File allows landlords and tenants across Ontario to file the most common LTB applications online, at anytime from anywhere.

During the 2017-18 fiscal year, the LTB received 31,002 applications online.

- 76.9% (23,827) were L1 applications
- 17.4% (5,402) were L2 applications
- 3.3% (1,026) were T2 applications
- 2.4% (747) were T6 applications

Of the 63,649 L1, L2, T2 and T6 applications filed with the LTB during the year, 47.1% were filed using e-File. This is a nearly 15% increase over last year. In part, the increase can be attributed to the 10% discount for e-filed applications introduced in January 2017.

- 50.0% of all L1 applications (47,595)
- 47.3% of all L2 applications (11,404)
- 36.2% of all T2 applications (2,832)
- 41.0% of all T6 applications (1,818)

An average of 74% of e-filed applications were also scheduled for a hearing date online; 76.2% of landlord applications and 34.9% of tenant applications. This is an increase of nearly 7% over last year. Approximately 18% of e-filed applications were filed outside of business hours. Paper applications can still be mailed, faxed or dropped off at one of the eight LTB offices or personally delivered to more than 60 ServiceOntario locations across the province.

Online Dispute Resolution (ODR) – Prototype

Starting in April 2017, an online dispute resolution (ODR) prototype was developed and tested with internal and external stakeholders. The aim of the prototype development was to assess whether a tool may be developed in the future to help tenants and landlords in Ontario to avoid disputes, resolve disputes without the need for formal legal processes, and enhance alternate portals to LTB services. The goal is for the LTB to provide people with the right online negotiation and mediation tools and processes to resolve disputes as they arise, without the need to travel and appear in-person at a LTB hearing.

Initial testing indicated that both landlords and tenants feel that ODR could be useful as a way of resolving disputes without the need for a formal, in-person hearing. Over the next few years, the LTB will consider implementing an online platform as part of its range of dispute resolution services.

LTB London Office e-File Pilot

In November 2017, landlords and tenants at the LTB Southwest office in London were able to e-File the four most common LTB applications (L1, L2, T2, T6) using a public computer, the "LTB Service Kiosk". LTB e-File allows clients to submit their application and supporting documents, and receive a hearing date at the same time.

People also had the option to leave their application in a secure drop-box at the front counter, rather than waiting to speak with a member of staff at the front counter. As part of this pilot, applications dropped off in-person were no longer processed on the spot; all paper applications were processed in the order they were received.

The goals of the pilot were to increase self-service options for the public, give more people access to LTB e-File, ensure that applications are processed in the order they are received and enable the LTB to redirect staff resources to where they are needed most.

LTB Central Office Electronic Case Files Pilot

Starting January 1, 2018, the LTB Central (Mississauga) office no longer creates paper case files for its 2018 applications. Rather than creating a paper file, an electronic hearing brief is created for the LTB to use during the hearing.

The goal of the pilot is to determine whether the use of electronic case files increases the efficiency and effectiveness of file and hearing room management. The pilot is anticipated to run until June 2018, at which time the LTB will evaluate whether or not to implement this process at other LTB regional offices.

Early Resolution Discussions in the Rexdale Community of Toronto

In partnership with the Rexdale Community Hub (the Hub), the Toronto North LTB office is testing an early dispute resolution process. When landlords file L2 applications that involve tenants who live in the Rexdale community, the early resolution discussion process will be an available option to resolve the application. The pilot started on January 22, 2018.

The goal of this process is to resolve tenancy problems that might lead to eviction without going to an LTB hearing. Tenants and landlords will have an early resolution discussion at the Hub where various community resources are available to assist parties. An LTB dispute resolution officer will guide the discussion.

If the parties resolve all the issues in the application at the early resolution discussion, the dispute resolution officer will draft a mediated agreement or a consent order that sets out what the parties have agreed to and close the application. If the parties don't resolve all the tenancy issues, the application will go to an LTB hearing before an adjudicator without delaying the usual hearing date.

Benefits of the early resolution discussion process include:

- takes place closer to home; no need to travel to the LTB Toronto North office
- access to on-site community based social services at the Hub
- no application filing fee if the parties resolve all their tenancy issues at the early resolution discussion
- assists landlords to work with vulnerable tenants to maintain their housing

New LTB Service Standards

Recognizing that some application types take longer to resolve than others, the LTB introduced new service standards on December 7, 2017. The standards give tenants and landlords a better idea of how long it will take to resolve their case.

The new service standards include:

- Applications to evict a tenant for non-payment of rent and for applications to collect rent the tenant owes (L1, L9):
 - Applications will be scheduled for a hearing within 25 business days.
 - Decisions will be issued within 4 business days of the conclusion of the final hearing.
- All other applications (excluding L5 – Application for an Above Guideline Increase and A4s – Application to Vary the Amount of a Rent Reduction):
 - Applications will be scheduled for a hearing within 30 business days.
 - Decisions will be issued within 10 business days of the conclusion of the final hearing.

In its previous standards, the LTB committed to schedule hearings within 25 business days and issue decisions within 5 days, 80% of the time.

Changes to the *Residential Tenancies Act*

A number of amendments to the *Residential Tenancies Act* were made this year. As a result of these changes, the LTB updated information on its website, brochures, forms and interpretation guidelines. A number of these changes are noted below:

Changes to Forms

- L4: Application to End a Tenancy – Tenant Failed to Meet Conditions of a Settlement or Order. There are now two versions of the form:
 - Use Form L4-A if the mediated agreement or order that was not complied with was based on an L1 or L2 application filed on or before December 31, 2017.
 - Use Form L4-B if the mediated agreement or order that was not complied with was based on an L1 or L2 application filed on or after January 1, 2018.
- L5: Application for an Above Guideline Increase
- T5: Tenant Application – Landlord Gave a Notice of Termination in Bad Faith
- N5: Notice to End your Tenancy for Interfering with Others, Damage or Overcrowding
- N5C: Notice by the Co-op to End your Occupancy for Interfering with Others, Damage or Overcrowding
- N6: Notice to End your Tenancy for Illegal Acts or Misrepresenting Income in a Rent-Geared-to-Income Rental Unit
- N12: Notice to End your Tenancy Because the Landlord, a Purchaser or a Family Member Requires the Rental Unit

Statistics

In 2017-18, the LTB received 80,791 applications. This total includes landlord, tenant and co-op applications. This volume has remained relatively consistent when compared year over year.

The ratio of landlord to tenant applications has also remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the LTB. This past year was no exception, with roughly 90% of applications filed by landlords and 10% filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, approximately 59% were to terminate a tenancy and evict because of non-payment of rent.

Table 31: Comparison of the number of LTB applications from the years 2015 to 2018

	2017-18	2016-17	2015-16
Applications Received	80,791	81,432	80,214
Applications Resolved	78,744	78,783	78,175
Open at year-end *	12,944	13,899	11,946

* In a small number of cases, "resolved" applications are re-opened in the case management system (e.g. when the LTB grants a request for review of an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus "applications received", less the "applications resolved". With the adoption of new service standards the average application lifecycle is 8 weeks, which represents an active caseload of approximately 12,000 applications.

Table 32: Comparison of the methods of resolution for LTB landlord/tenant applications from the years 2015 to 2018

Resolution Type	2017-18	2016-17	2015-16
-----------------	---------	---------	---------

Abandoned ¹	2,805	3,168	2,673
Resolved by Mediation ²	10,804	10,735	11,541
Resolved at Hearing ³	49,776	49,901	48,533
Resolved without Hearing ⁴	3,908	3,997	4,397
Review Denied	1,010	903	729
Withdrawn	8,155	8,264	7,487
Other ⁵	1,802	1,815	2,413
Total	78,260	78,783	77,773

¹ Ordered by hearing abandoned

² Mediated; ordered by hearing mediated

³ Ordered by hearing contested or uncontested; ordered by review

⁴ Ordered ex parte; ordered by section 206 agreement

⁵ Discontinued; order voided; ordered amended; amendment denied

Table 33: Comparison of the methods of resolution for LTB co-op eviction applications from the years 2015 to 2018

Resolution Type	2017-18	2016-17	2015-16
No Hearing *	103	133	91
Case Management Hearing Only	268	288	236
Merit Hearing Only	22	25	10
Both Case Management Hearing and Merit Hearing	91	79	65
Total	484	525	402

* Application withdrawn/discontinued; parties settled the issues on their own.

Table 34: Comparison of the number of LTB landlord/tenant applications received by region

Head Office *	Central	East	North	South	South West	Toronto East	Toronto North	Toronto South	Total
1,300	9,005	8,477	4,088	10,969	13,777	10,731	11,380	10,522	80,249

* When the case management system is unable to match the postal code to a region in an e-Filed application, it is assigned to "Head Office".

Table 35: Comparison of the number of LTB co-op applications received by region

Central	East	North	South	South	Toronto	Toronto	Toronto	Total
---------	------	-------	-------	-------	---------	---------	---------	-------

				West	East	North	South	
50	44	33	91	116	102	55	51	542

Table 36: Comparison of the number and types of LTB landlord applications received from the years 2015 to 2018

Case Type	Application Description	2017-18	2016-17	2015-16
A1	Determine Whether the Act Applies	96 (0.1%)	104 (0.1%)	67 (0.1%)
A2	Sublet or Assignment	332 (0.5%)	264 (0.3%)	234 (0.3%)
A3	Combined Application (usually includes an L1)	3,878 (5.3%)	4,067 (5.6%)	4,050 (5.7%)
A4	Vary Rent Reduction Amount	220 (0.3%)	134 (0.2%)	76 (0.1%)
L1	Terminate & Evict for Non-Payment of Rent	47,595 (65.6%)	49,489 (67.6%)	48,940 (68.4%)
L2	Terminate for Other Reasons & Evict	11,404 (15.7%)	9,987 (13.6%)	8,876 (12.4%)
L3	Termination - Tenant Gave Notice or Agreed	1,622 (2.2%)	1,439 (2.0%)	1,338 (1.9%)
L4	Terminate the Tenancy - Failed Settlement	5,552 (7.7%)	5,478 (7.5%)	5,559 (7.8%)
L5	Rent Increase Above the Guideline	559 (0.8%)	575 (0.8%)	433 (0.6%)
L6	Review of Provincial Work Order	5 (0.0%)	3 (0.0%)	15 (0.0%)
L7	Transfer Tenant to Care Home	1 (0.0%)	1 (0.0%)	6 (0.0%)
L8	Tenant Changed Locks	29 (0.0%)	37 (0.0%)	28 (0.0%)
L9	Application to Collect Rent	1,218 (1.7%)	1,628 (2.2%)	1,892 (2.6%)
	Total	72,511	73,206	71,514

Table 37: Comparison of the number and types of LTB tenant applications received from the years 2015 to 2018

Case Type	Application Description	2017-18	2016-17	2015-16
A1	Determine Whether the Act Applies	91 (1.2%)	49 (0.6%)	64 (0.8%)
A2	Sublet or Assignment	57 (0.7%)	55 (0.7%)	68 (0.8%)
A3	Combined Application	1,798 (23.2%)	1,634 (19.8%)	1,586 (19.3%)

A4	Vary Rent Reduction Amount	2 (0.0%)	0 (0.0%)	0 (0.0%)
T1	Rent Rebate (e.g. illegal rent)	765 (9.9%)	732 (8.9%)	663 (8.1%)
T2	Tenant Rights	2,832 (36.6%)	3,807 (46.1%)	3,922 (47.7%)
T3	Rent Reduction	71 (0.9%)	68 (0.8%)	67 (0.8%)
T4	Failed Rent Increase Above Guideline	3 (0.0%)	6 (0.0%)	0 (0.0%)
T5	Bad Faith Notice of Termination	295 (3.8%)	211 (2.6%)	174 (2.1%)
T6	Maintenance	1,818 (23.5%)	1,675 (20.3%)	1,661 (20.2%)
T7	Suite Meters	6 (0.1%)	7 (0.0%)	23 (0.3%)
	Total	7,738	8,244	8,228

Table 38: Comparison of the number and types of LTB co-op applications received from the years 2015 to 2018

Case Type	Application Description	2017-18	2016-17	2015-16
C1	Application to End the Occupancy and Evict the Member based on Non-payment of Regular Monthly Housing Charges and to Collect the Housing Charges that the Co-op Member Owes	247 (46%)	274 (47%)	252 (53.3%)
C1/2	Combined C1 and C2 applications	114 (21%)	102 (17.5%)	74 (15.6%)
C2	Application to End the Occupancy of the Member Unit and Evict the Member	86 (16%)	93 (16%)	73 (15.4%)
C3	Application to End the Occupancy and Evict the Member - Based on the Member's Consent or Notice	6 (1%)	3 (0.01%)	5 (1%)
C4	Application to End the Occupancy of the Member Unit and Evict the Member Because the Member Failed to Meet Conditions of a Settlement/Order	89 (16%)	110 (18.9%)	68 (14.4%)
	Total	542	582	472

Service Standards

The LTB has historically committed to schedule hearings within 25 business days of the date the application is filed and issue decisions within five days after the end of the hearing, 80% of the time. As highlighted earlier in this report, in December 2017, the LTB introduced new service standards to give landlords and tenants a better idea of how long it will take to resolve their case. The LTB will report against the new service standards going forward from 2018-19.

Table 39: Comparison of LTB service standards for hearings from the years 2015 to 2018

	2017-18		2016-17		2015-16	
Standard	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met	Average number of days (whether standard has been met or not)	% of time service standard is met
Applications will be scheduled for a hearing within 25 business days	28 days	49%	26.6 days	52%	23.3 days	69%
Decisions for LTB applications will be issued within 5 business days at the conclusion of the final hearing	5.1 days	81%	5.2 days	78%	4.6 days	83%

Call Centre

The LTB is mandated by the *Residential Tenancies Act* to provide information to landlords and tenants about their rights and obligations under the *Act*. This obligation is met, in part, through the LTB call centre.

Table 40: Comparison of LTB call centre data from the years 2015 to 2018

	2017-18	2016-17	2015-16
Calls handled	272,719	261,154	299,143
Average time per call	04:57	05:19	04:45
Average wait time in the queue	09:04	09:46	05:06